statement under Section 313 of the Criminal Procedure Code. There was also the ‘disclosure statement’ recorded by the police soon after his arrest. But disclosure statements by themselves are not admissible as evidence.

In his confessional statement, Afzal narrated the entire conspiracy and the operational details of the attack on Parliament.[3] The conspiracy story goes like this: Maulana Masood Azhar, the leader of Jaish-e- Mohammad, based in Pakistan, instructed, at the instance of the Inter-Services Intelligence (ISI), one Ghazi Baba, the supreme commander of the outfit in Kashmir, to carry out actions on important institutions in India. Ghazi Baba directed one Tariq Ahmed to arrange for an operation. Tariq got in touch with Mohammad Afzal and motivated him to join the jehad for the liberation of Kashmir. Afzal met Ghazi Baba and the plan was worked out. It was going to be a joint operation of Jaish-e-Mohammad and Lashkar-e-Toiba. Beginning with one Mohammad, Afzal arranged for several militants—Haider, Hamza, Raja and Rana—to bring huge quantities of arms, explosives and a laptop computer to Delhi, into pre-arranged hide-outs. In Delhi, the team got in touch with Afzal’s cousin, Shaukat Hussain Guru, Shaukat’s wife Afsan Guru and S.A.R. Geelani, a lecturer of Arabic in Delhi University.

In the beginning, the terrorists kept their options open between the Delhi assembly, UK and US embassies, the Parliament and the airport. Reconnaissance was conducted accordingly. However, Ghazi Baba instructed them over satellite telephone to attack the Parliament. In a final meeting on the night of 12 December 2001, the militants handed over Rs 10 lakh to Afzal, Shaukat and Geelani for their part in the conspiracy; they also handed over the laptop, to be returned to Ghazi Baba.

This story was presented by the police, argued for by the prosecution, propagated repeatedly in full colour by the print and visual media over three and a half years, and ratified by two courts of law. The prosecution’s story was transformed into a telefilm by Zee TV. ‘The film was shown to the then Prime Minister and the then home minister, and the media recorded their approval of the film,’ Nandita Haksar wrote in her report ‘Tried by the Media: The S.A.R. Geelani Trial’. The film was telecast repeatedly before the first judgement on the case was delivered.

Apart from Afzal’s confessional statement, there was never an iota of independent evidence corroborating this story. Citing ‘incontrovertible evidence’ on the floor of the Parliament and holding Pakistan responsible for the attack, the government mounted a massive military offensive that brought